Zold Electric Inc

Proposal

Lic. #: WC# 1968, PC#10328
226 Tibet Drive Carmel NY 10512

(845) 306-7529
joe.bene@zoldelectric.com
www.zoldelectric.com

Proposal Number: **P-2072**
Proposal Date: Jul 8, 2025
Proposal Expires: Aug 7, 2025

Client

Montana Contracting - Congers (Ines MacAdam)
173 US-9W Congers NY 10920
(845) 398-1778
a.divernieri@montanacontracting.com

Project

2072 - Shake Shack Poughkeepsie
35 Winslow Gate Road Poughkeepsie NY 12601

Thank you for inviting us to provide you an estimate for your project. Please review the proposed scope of work and let us know if you have any questions.

DESCRIPTION	PRICE
Electrical Base Bid	$291,192.37
Labor SOW	*$156,408.08*

Scope of Work

**scope of work

- install new NEMA1R 600Amp 3PH Switchboard/MDP to specifications on single line diagram per engineer sheet plan E-300
- Existing Utility Service to be re-utilized for new MDP
- Install all feeders and allocated panelboards per panel schedule
- install all new power and lighting circuits called on drawings for drawing sets
- install all receptacles on drawings specified with rating of application
- install all lighting from fixture schedule on E-01 on lighting drawings specified by lighting schedule at intended locations.
- Lighting Fixture and controls package to be furnished by owner

Demo Scope

- N/A

Site Scope

- N/A

Temporary Service/power/lighting Scope

- Install temporary stringer lighting throughout for temp lighting

- Install 2 new 30A Spider Boxes with GFCI protected receptacles for jobsite power

Power Circuits Scope

- Power to all exterior RTU units
- Power to all ERU units
- Power to EF-R units
- Power to all FCU units
- Power to all CUH units
- Power to HWH units
- Power to all EF units
- Power to TX-A bathroom exhaust
- Power to all Elevator pits for lighting and power receptacles
- Power to both Elevator motor controls
- Power to Ejector Pit and wiring of controls (Control panel and related equipment to be supplied by others)
- Power to Sub Pump system
- Duplex outlets where allocated per power power plans
- Duplex outlets - GFI (WP) where allocated per power power plans
- Quad Duplex outlets
- Duplex outlets - (240V) rated
- Junction Box - various
- Power to all kitchen appliances/circuits per power plan layout.
- Floor receptacles and data housings

**all feeder power circuits for equipment above 20amps to have local disconnects within sight of equipment by 2017 NEC code.

Lighting circuit Scope

- Dual Occupancy/vacancy Sensor controls to installed via ceiling mounted
- Occupancy Grouped lighting per lighting plan
- Single pole Switch to allocated lighting circuits that are designed to be switched in single location per lighting plan layout.
- Single 3-way Switch to allocated lighting circuits that are designed to be switched in multiple locations per lighting plan layout.
- Occupancy & Vacancy Sensors per lighting plan layout per their assigned lighting runs.
- Install all assigned fixtures per fixture schedules for all designated locations on lighting plan.
- Install all exit lights per lighting plan
- Installation of Lutron lighting control system per lighting control schedule

Switchboard & Panelboard Scope

- install 600amp NEMA1R 3PH 120/208v 62KAIC rated Switchboard for incoming utility 120/208v secondary service. Power Panel "DP"
- install 120/208v 225amp MLO 3PH NEMA1R Panelboard "P1"
- install 120/208v 225amp MCB 3PH NEMA1R Panelboard "P2"
- install integrated SPD in Main Distribution board

Generator and ATS Scope

- N/A

Utility Scope

- See ADD ALT for utility scope

Fire Alarm Scope

- Installation of fire alarm system
- engineered drawings included
- See separate Breakout for detailed scope and pricing

Low Voltage Scope

- Installation of Low voltage Stubs and back Boxes with drag lines for all low voltage vendors

Notes

**All HVAC equipment, i.e..; heaters/control systems/blowers shall be furnished by HVAC contractor or others.

**All Plumbing equipment and related controls will be supplied by others.

**All trenching for electrical conduits to be done by others

**Tax not included

Project Foreman

Project Foreman to be onsite for the entirety of the project for the following responsibilities

- Supervision
- Planning & Scheduling
- Material Management
- Safety
- Quality Control
- Communication
- Project Reporting

materials $112,217.79

Switchgear & Panelboards

Electrical Gear Package (Square D, MFG.) from Grey Bar Vendor

- Panel DP with integral SPD
- Panel P1
- Panel P2

*All Transformers to have aluminum windings unless otherwise specified, UON.

*All 120/208V 3PH Panelboards to be 10KAIC rated, UON.

*All 277/480v 3PH Panelboards to be 14KAIC rated, UON.

*All Power Panel Boards to be 42KAIC rated, UON

*All Switchboards to be 65KAIC rated at a minimum, UON.

**Main Switchboard and all metering related equipment shall be designed for utility specifications.

- All Panelboards were quoted with copper bus if applicable
- All Transformers were quoted with aluminum winding if applicable
- Switchboard was quoted as per specs of Utility
- Fuses for all Disconnects were included in price.

Lead times as follows

- Main Switchboard = 140 working days
- CT meters = 80 workings days
- Panelboards = 60 Working Days
- Disconnects = 20 working days

City of Poughkeepsie electrical permit

Filing of Electrical Permit for the city of Poughkeepsie.

SWIS - Commercial Service Inspection 201-800 AMP

Service Inspection Fee - Commercial (201-800amp)

SWIS - Commercial Inspection 0-9999sqft

0-9999 Square Feet: Billed on device count of Renovation or new construction. May Include up to 5 Visits (Service Inspection, if Needed Will Be Included in the 5 Visits.)

ADD ALT#1 (Utility Service) $43,384.10

Scope of Work

Add alt for the following scope:

- installation of 600A 3PH 120/208V 4W Service from utility pole to new CT cabinet
- Install new Central Hudson Utility CT cabinet with meter pan per utility spec
- install new SEC from CT cabinet to new Service entrance rated fused disconnect switch
- coordinate tie in with Central Hudson

CEN HUD 800 AMP TRANS S

TS-800-208 CENHUD 800 AMP TRANS "S"

Service and Distribution Equipment

Eaton 600amp rated 3 phase fused disconnect with neutral kit for main bond NEMA 3R

ADD ALT#2 (Lighting Package) $93,847.50

Fixture Package

- Fixture LOT package per fixture count on bid drawings dated 5-13-25

Lighting Control Package

- Lighting Control LOT Package ordered per design specifications/ intent (Lutron Controls Package) dated 5-13-25

ADD ALT#3 (Fire Alarm) $53,773.50

Scope of Work

**scope of work

*new install

- installation of Fire Lite Fire Alarm Panel for client space per fire alarm drawings with battery backup to tie into existing siemens system. Based on NFPA72 requirements due to incomplete design drawings.
- Install all addressable devices throughout building per single line drawing for all related spaces
- install FA monitoring modules
- install remote amplifier
- install pull station
- install all speaker strobes for wall and ceiling mounted locations
- install security relay module
- install Flow/valve controls and all related sprinkler notification circuits for supervisory.
- installation of conduit for surface mount applications and open areas
- commissioning of fire alarm system
- Filing of security/FA permit
- engineered deign drawings to be submitted prior to start.

*Fire Alarm System to be inspected by third party and by local FD/BD official

Fire Alarm Package 1-Fire Lite Fire Alarm Control Panel (I am using this panel because the existing Fire Alarm devices and panels are unknown and we can do a universal serial bus tie in.. This will allow us to use the newer devices. In order to use the new devices on the existing system, unless its a siemens system. 1-Remote Amplifier 6-monitoring module 12-Smoke Detectors 2-Heat Detectors 2-Pull Station 1-Security Relay Module 6-Ceiling Speaker/Strobes 3-Wall Speaker/Strobes 6-Ceiling Strobes 1-Addressable Monitor Module to tie into the existing Fire Alarm Panel 1-FACP/ DGP • Submittals • Testing (All testing for the above system(s) shall be accomplished with your electricians along with an OSM Technician). • Inspection, testing & commissioning upon completion of the project. • 1-Year equipment warranty on all of the above-listed system components. • In-service training for building key personnel /staff as specified. Engineered As builts • Engineered drawings for Fire Alarm As builts • Engineered single line drawings and control schedule for fire alarm pre-install	
Subtotal	$482,197.47
Taxable Subtotal	$0.00
Tax 0%	$0.00
Total	**$482,197.47**

Electrical Services Agreement

From this point forward, the term '**Contractor**' shall refer to the party that has been awarded the contract, as referenced in the proposal above.

This Electrical Services Agreement is made effective as of the date listed above in the proposal, by and between the parties identified herein, **[CONTRACTOR]** and **Zold Electric Inc**., located at **226 Tibet Dr., Carmel, New York 10512.**

Zold Electric Inc. agrees to provide electrical services to the **Contractor**, for the Owner that has engaged in acquiring such services to be performed.

WHEREAS, **Zold Electric Inc.** is duly qualified and licensed to perform electrical services and repairs.

NOW, THEREFORE, in consideration of the mutual promises and covenants set forth below, the parties hereby agree as follows:

DESCRIPTION OF SERVICES

Effective as of the date upon agreement of this contract, **Zold Electric Inc.** agrees to provide the **contractor** electrical services and/or electrical repairs at the property specified herein. **Zold Electric Inc.** will perform the following electrical services as outlined in the proposal.

SCOPE OF WORK

Zold Electric Inc. shall furnish all necessary labor, materials, and equipment to perform and complete the electrical services described in the proposal. This includes, but is not limited to, all work required for the successful execution of the services. The work will be completed in accordance with electrical codes, local building codes and OSHA safety standards upon the project deadline.

PAYMENT

Payment for the services rendered under this Agreement shall be made to **Zold Electric Inc.**, located at **226 Tibet Dr., Carmel, New York 10512.** The **Contractor** agrees to pay **Zold Electric Inc**. the full sum, in accordance with the terms specified below.

TIME OF COMPLETION

Zold Electric Inc. shall commence work to be performed under this agreement on or before **DATE**

Event:	**Payment Amount:**
Deposit	$N/A if project material packages below $5,000
Electrical Progress pay application	Payment requisitions shall be made per progress of project with AIA documents with NET30 payments on the 25th of each month
Final Completion	5% retainage, final total, in addition to any change orders

Should any invoice remain unpaid after the due date, interest will accrue on all overdue amounts at a rate of 15 percent per annum, or the maximum rate permitted by applicable law, whichever is lower. The **Contractor** shall be responsible for all collection costs, including, but not limited to, reasonable attorney's fees.

In addition to any other rights or remedies available under the law, if the **Contractor** fails to make payment for the Services when due, **Zold Electric Inc.** reserves the right to treat such failure as a material breach of this Agreement. In such case, **Zold Electric Inc.** may, at its discretion, terminate this Agreement and/or pursue legal remedies.

PERMITS

Zold Electric Inc. shall be responsible for applying for and obtaining any necessary permits and inspections required by the local municipal or county authorities. The cost of such permits and inspections shall be included as part of the payment to the **Contractor** under this Agreement.

INSURANCE AND LIABILITY

The **Contractor** shall maintain appropriate general liability insurance, workers' compensation insurance, and builder's risk insurance throughout the duration of the project. **Zold Electric Inc.** shall provide proof of insurance to the Owner upon request.

SURVEY AND TITLE

The Owner shall identify the property boundaries to the **Contractor** and, if necessary, provide boundary stakes marked by a licensed land surveyor, particularly if there is any uncertainty regarding the property lines.

ACCESS TO PROPERTY

The **contractor** shall provide unrestricted access to the work areas for **Zold Electric Inc.** personnel and vehicles, and shall allow space for the storage of materials and debris. The **contractor** agrees to keep driveways clear to facilitate the movement of vehicles during work hours. The **Contractor** and **Zold Electric Inc.** will make reasonable efforts to protect driveways, lawns, shrubs, and other vegetation during the course of the work.

FINAL INSPECTIONS AND LIENS

Upon notification from **Zold Electric Inc**. of substantial completion of the work, both the Owner and the **Contractor** shall conduct a joint inspection of the work performed. Any incomplete work or deficiencies in workmanship or materials shall be identified. Once the owner determines that the work is completed to satisfaction, the **Contractor** shall remit any outstanding balance due to **Zold Electric Inc.**. Upon receipt of such payment, **Zold Electric Inc.** shall provide the **Contractor** with a release of all liens.

WARRANTY

Zold Electric Inc. shall perform its services and fulfill its obligations under this Agreement in a timely and professional manner. **Zold Electric Inc.** shall correct any defects in workmanship or materials that arise within one year from the completion of the work at no additional cost to the Owner. **Zold Electric Inc**. will apply industry-standard practices, utilizing knowledge and methods that meet or exceed generally accepted standards within the community and region. **Zold Electric Inc.** will exercise a standard of care that is equal to or superior to that of other contractors performing similar services on comparable projects.

COMPLETION OF SERVICES

Upon completion of the electrical services, the **Zold Electric Inc.** shall ensure that the Owner's property is restored to its original condition as it was prior to the commencement of work. **Zold Electric Inc.** shall ensure that all areas used during the course of this Agreement are left in a clean and orderly state, free of debris and broom-cleaned.

DEFAULT: The occurrence of any of the following shall constitute a material default under this Agreement:

a. The failure to make a required payment when due.

b. The insolvency or bankruptcy of either party.

c. The subjection of any of either party's property to any levy, seizure, general assignment for the benefit of creditors, application or sale for or by any creditor or government agency.

d. The failure to make available or deliver the Services in the time and manner provided for in this Agreement.

REMEDIES

In addition to any and all other rights a party may have available according to law, if a party defaults by failing to substantially perform any provision, term or condition of this Agreement (including without limitation the failure to make a monetary payment when due), the other party may terminate the Agreement by providing written notice to the defaulting party. This notice shall describe with sufficient detail the nature of the default. The party receiving such notice shall have 30 days from the effective date of such notice to cure the default(s). Unless waived by a party providing notice, the failure to cure the default(s) within such a time period shall result in the automatic termination of this Agreement.

FORCE MAJEURE

If performance of this Agreement or any obligation under this Agreement is prevented, restricted, or interfered with by causes beyond either party's reasonable control ("Force Majeure"), and if the party unable to carry out its obligations gives the other party prompt written notice of such event, then the obligations of the party invoking this provision shall be suspended to the extent necessary by such event. The term Force Majeure shall include, without limitation, acts of God, plague, epidemic, pandemic, outbreaks of infectious disease or any other public health crisis, including quarantine or other employee restrictions, fire, explosion, vandalism, storm or other similar occurrence, orders or acts of military or civil authority, or by national emergencies, insurrections, riots, or wars, or strikes, lockouts, work stoppages, or supplier failures. The excused party shall use reasonable efforts under the circumstances to avoid or remove such causes of non-performance and shall proceed to perform with reasonable dispatch whenever such causes are removed or ceased. An act or omission shall be deemed within the reasonable control of a party if committed, omitted, or caused by such party, or its employees, officers, agents, or affiliates.

ARBITRATION

Any controversies or disputes arising out of or relating to this Agreement shall be resolved by binding arbitration in accordance with the then-current Commercial Arbitration Rules of the American Arbitration Association. The parties shall select a mutually acceptable arbitrator knowledgeable about issues relating to the subject matter of this Agreement. In the event the parties are unable to agree to such a selection, each party will select an arbitrator and the two arbitrators in turn shall select a third arbitrator, all three of whom shall preside jointly over the matter. The arbitration shall take place at a location that is reasonably centrally located between the parties, or otherwise mutually agreed upon by the parties. All documents, materials, and information in the possession of each party that are in any way relevant to the dispute shall be made available to the other party for review and copying no later than 30 days after the notice of arbitration is served. The arbitrator(s) shall not have the authority to modify any provision of this Agreement or to award punitive damages. The arbitrator(s) shall have the power to issue mandatory orders and restraint orders in connection with the arbitration. The decision rendered by the arbitrator(s) shall be final and binding on the parties, and judgment may be entered in conformity with the decision in any court having jurisdiction. The agreement to arbitration shall be specifically enforceable under the prevailing arbitration

law. During the continuance of any arbitration proceeding, the parties shall continue to perform their respective obligations under this Agreement.

ENTIRE AGREEMENT

This Agreement contains the entire agreement of the parties, and there are no other promises or conditions in any other agreement whether oral or written concerning the subject matter of this Agreement. This Agreement supersedes any prior written or oral agreements between the parties.

SEVERABILITY

If any provision of this Agreement will be held to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

AMENDMENT

This Agreement may be modified or amended in writing, if the writing is signed by the party obligated under the amendment.

GOVERNING LAW

This Agreement shall be construed in accordance with the laws of the State of New York.

NOTICE

Any notice or communication required or permitted under this Agreement shall be sufficiently given if delivered in person or by certified mail, return receipt requested, to the address set forth in the opening paragraph or to such other address as one party may have furnished to the other in writing.

WAIVER OF CONTRACTUAL RIGHT

The failure of either party to enforce any provision of this Agreement shall not be construed as a waiver or limitation of that party's right to subsequently enforce and compel strict compliance with every provision of this Agreement.

SIGNATORIES: This Agreement shall be signed on behalf of the **contractor** that is awarded the project and has a principal role in said company. This service agreement can not be replaced by **contractors** contract but shall be included in as an exhibit for their complete project contract for sub-contractor **(Zold Electric Inc)**. This agreement shall become effective as of the date signed below electronically.

Contractor Name:

_____ _____

Contractor Date

Zold Electric, Inc.

_____ _____

Joseph Bene Date

signature signed by date